

24STCV22699 24STCV22699

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-07-02

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Case Number: 24STCV22699 Hearing Date: July 2, 2026 Dept: 414

24STCV22699 Stephens, et al. v. Jefferson Cunningham

Community Partners, LP, et al

Thursday,

July 2, 2026

[TENTATIVE] ORDER CONTINUING THE HEARING ON PETITION FOR APPROVAL
OF COMPROMISE OF CLAIM OR ACTION OR
DISPOSITION OF PROCEEDS OF JUDGMENT FOR A PERSON WITH A DISABILITY

I.

BACKGROUND

This action arises from alleged violations of the implied warranty of habitability. Petitioner, Cynthia Hill Stephens, is the parent and Guardian ad Litem of Jazmine Rose Stephens, age 37, who is a person with a disability.

Plaintiffs

filed a notice of settlement. (Ntc. 11.25.25.) The court previously denied an application for approval of settlement because of defects as noted in the court's ruling. Plaintiffs have not cured the defects.

The

claimant has not recovered from the injuries of the incident. Petitioner is required to submit an original or a photocopy of any doctor's report containing a diagnosis of the claimant's injuries or a prognosis for the claimant's recovery, and a report of the claimant's current condition, must be attached to

this petition as Attachment 8 to the petition. A new report is not necessary if a previous report accurately describes the claimant's current condition.

As

the court previously noted, where the funds are proposed to be distributed into a special needs trust, the Probate Department must review the trust. Petitioner submits a trust instrument, but there is no indication it was submitted to the Probate Division for review.

To facilitate a timely review, a party seeking to establish and fund a trust as part of a petition for approval of a compromise filed in a civil department pursuant to subsection (a)(2) of this rule must, within two court days of the filing of the petition for approval of compromise and trust, lodge with the filing window of the Probate Division at Stanley Mosk Courthouse a physical copy of the face page of the petition to approve compromise and attach a copy of the proposed trust instrument and the proposed order approving the compromise and trust. (Cal Rules of Court, Rule 4.115 (b).)

Accordingly, the hearing on this petition is continued to August 14, 2026, at 9:00 a.m. in Department 414 of the Stanley Mosk Courthouse. Counsel is ordered to file a supplemental declaration attaching a report showing the claimant's current condition. Counsel is ordered to file notice in this department that the trust document trust was lodged with the Probate Division in compliance with Ru